

Discrimination: your rights

1. Types of discrimination ('protected characteristics')

It is against the law to discriminate against anyone because of:

- age
- gender reassignment
- being married or in a civil partnership
- [being pregnant \(/working-when-pregnant-your-rights\)](/working-when-pregnant-your-rights) or on maternity leave
- [disability \(/definition-of-disability-under-equality-act-2010\)](/definition-of-disability-under-equality-act-2010)
- race including colour, nationality, ethnic or national origin
- religion or belief
- sex
- sexual orientation

These are called 'protected characteristics'.

You're protected from discrimination:

- at work
- in education
- as a consumer
- when using public services
- when buying or renting property
- as a member or guest of a private club or association

You're legally protected from discrimination by the [Equality Act 2010 \(http://www.legislation.gov.uk/ukpga/2010/15/contents\)](http://www.legislation.gov.uk/ukpga/2010/15/contents).

You're also protected from discrimination if:

- you're associated with someone who has a protected characteristic, for example a family member or friend

- you've complained about discrimination or supported someone else's claim

Action against discrimination

You can do something voluntarily to help people with a protected characteristic. This is called 'positive action'.

Taking positive action is legal if people with a protected characteristic:

- are at a disadvantage
- have particular needs
- are under-represented in an activity or type of work

2. How you can be discriminated against

Discrimination can come in one of the following forms:

- direct discrimination - treating someone with a protected characteristic less favourably than others
- indirect discrimination - putting rules or arrangements in place that apply to everyone, but that put someone with a protected characteristic at an unfair disadvantage
- harassment - unwanted behaviour linked to a protected characteristic that violates someone's dignity or creates an offensive environment for them
- victimisation - treating someone unfairly because they've complained about discrimination or harassment

It can be lawful to have specific rules or arrangements in place, as long as they can be justified.

3. Discrimination at work

The law protects you against discrimination at work, including:

- dismissal
- employment terms and conditions
- pay and benefits
- promotion and transfer opportunities
- training
- recruitment

- redundancy

Some forms of discrimination are only allowed if they're needed for the way the organisation works, for example:

- a Roman Catholic school restricting applications for admission of pupils to Catholics only
- employing only women in a health centre for Muslim women

Disability

If you're disabled you have the same rights as other workers. Employers should also make 'reasonable adjustments' to help disabled employees and job applicants with:

- application forms, for example providing forms in Braille or audio formats
- aptitude tests, for example giving extra time to complete the tests
- dismissal or redundancy
- discipline and grievances
- interview arrangements, such as providing wheelchair access, communicator support
- making sure the workplace has the right facilities and equipment for disabled workers or someone offered a job
- promotion, transfer and training opportunities
- terms of employment, including pay
- work-related benefits like access to recreation or refreshment facilities

What you can do

If you're discriminated against at work there are [ways to deal with it \(/discrimination-your-rights/what-you-can-do\)](#).

Employers have to follow the law on [preventing discrimination at work \(/employer-preventing-discrimination\)](#).

Other types of unfair treatment

You're also protected from being treated unfairly because of:

- [trade union membership \(/join-trade-union/trade-union-membership-your-employment-rights\)](#) or non-membership

- being a [fixed-term \(/fixed-term-contracts\)](/fixed-term-contracts) or [part-time worker \(/part-time-worker-rights\)](/part-time-worker-rights)

4. What you can do

If you think you've been unfairly discriminated against you can:

- complain directly to the person or organisation
- use someone else to help you sort it out (called 'mediation' or 'alternative dispute resolution')
- make a claim in a court or tribunal

Contact the [Equality Advisory Support Service \(/equality-advisory-support-service\)](/equality-advisory-support-service) for help and advice.

Discrimination at work

Employees should talk to their employer first to try and sort out the problem informally. You may also want to read about [workplace disputes \(/solve-workplace-dispute\)](/solve-workplace-dispute).

If things cannot be sorted out informally, [talk to Acas \(https://www.acas.org.uk/contact\)](https://www.acas.org.uk/contact), [Citizens Advice \(http://www.citizensadvice.org.uk/index/getadvice.htm\)](http://www.citizensadvice.org.uk/index/getadvice.htm) or a trade union representative.

You might be able to take a claim to an [employment tribunal \(/employment-tribunals\)](/employment-tribunals) for discrimination.

[Check if you can get legal aid \(/check-legal-aid\)](/check-legal-aid) to help with your legal costs if you think you've been discriminated against. You can get advice from Civil Legal Advice if you're eligible.

Employers must follow the law on [preventing discrimination at work \(/employer-preventing-discrimination\)](/employer-preventing-discrimination).





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